

Vijay Laxmi Yadav v. District Magistrate, Lucknow

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 8 April 2025 · 2025:AHC-LKO:19578-DB · WRIT - C No. - 3339 of 2025 · **Writ disposed; licensee to consider occupier's connection application on proof of possession, even without owner's consent.**

HEADNOTE

Mandamus for a new connection was refused where the petitioner had not proved tenancy. An occupier who applies with lease, rent receipt or TDS and an indemnity bond may still be considered for supply in her own name without the owner's consent, after the owner is heard, if possession is proved and there is no legal impediment.

FACTUAL SUMMARY

The petitioner claimed to be a franchisee of salon M/s Javed Habib Glamour World Hair and Beauty Solutions Pvt. Ltd. and a tenant of premises owned by opposite party No. 3. The electricity connection, standing in the name of an earlier tenant, was disconnected on the owner's application. No lease deed was filed with the writ. The licensee said she had produced neither a lease agreement nor a rent receipt, so her request was not entertained. She asserted rent exceeding Rs. 1 lakh a month.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupier connection without owner consent

HOLDING

A writ for connection does not lie where the occupier has not proved tenancy or possession. If she applies with a lease, rent receipt or TDS and an indemnity bond, and possession is proved, the licensee may grant a connection in her name even without the owner's consent, after hearing the owner, if there is no legal impediment, and shall decide within three weeks. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS A TENANT IN POSSESSION AND WHETHER ANY LEGAL IMPEDIMENT BARS A CONNECTION

No lease or rent receipt on the writ record; merits left to the licensee if a complete application is filed. ¶ 1-2